

(FAC, ¶¶ 32-33.)

The Court finds Plaintiff's allegations as to element five sufficient for pleading purposes. Additionally, the Court finds that the intent to defraud is properly alleged at paragraphs 21 and 117 of the FAC. (FAC, ¶¶ 21 ["Defendants' acts were done maliciously, oppressively, deliberately, with intent to defraud, and in reckless disregard of Plaintiffs rights and well-being, in part to enrich themselves at the expense of consumers."]; 117 ["Defendants intentionally concealed material information regarding the Defective Engine to drive up sales and maintain their market power. Defendants' acts were done maliciously, oppressively, deliberately, with intent to defraud, and in reckless disregard of Plaintiffs rights and well-being. Defendants' acts were perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent, were done to enrich themselves at the expense of consumers, gain commercial advantage over competitors, and to drive consumers away from consideration of competitor's vehicles."].)

Plaintiff has properly pled his fraudulent concealment claim with the requisite specificity and thus the punitive damages prayer will be allowed to remain.

Ruling

A properly pled fraud claim supports the punitive damages allegation. Accordingly, the Court **DENIES** Defendant's motion to strike punitive damages allegations from the FAC.

11. 9:00 AM CASE NUMBER: C26-00479

CASE NAME: EVAN OWENS VS. ELIZABETH LAYN

1ST AMENDED COMPLAINT

FILED BY: LAYN, ELIZABETH G.

TENTATIVE RULING:

On the Court's own motion, the hearing on the demurrer is continued to **9:00 a.m. on September 4, 2026.**

12. 9:00 AM CASE NUMBER: C26-00637

CASE NAME: WILLIAM DESENA VS. WALNUT CREEK COMMUNITY HEALTHCARE, LLC

RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY JUSTIN VITUG, ESQ.

FILED BY: DESENA, WILLIAM

TENTATIVE RULING:

The unopposed motion of **Justin Vitug and Javaheri & Yahoudai** to be relieved as counsel for **Plaintiff William Desena** is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Plaintiff's Counsel has complied with the provisions of this rule and statute providing notice to client and

supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of **Plaintiff William Desena's** Counsel to be relieved as counsel of record. This motion is **granted**.

The Court will execute and submit a Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053), listing the appropriate next dates scheduled in the case. The withdrawal is effective upon **Justin Vitug** filing proof of service of signed order on **Plaintiff William Desena** and all parties.

The next date in this case is September 28, 2026 at 8:30 a.m. in Dept. 32 for Case Management Conference. All parties are ordered to file an updated Case Management Conference Statement at least 10 days prior to the Case Management Conference.

13. 9:00 AM CASE NUMBER: C26-00876
CASE NAME: PNC BANK, NATIONAL ASSOCIATION, SUCCESSOR TO PNC EQUIPMENT FINANCE, LLC, VS. COSTAS LAGUSIS

APPLICATION FOR WRIT OF POSSESSION AND HEARING AFTER HEARING

FILED BY: PNC BANK, NATIONAL ASSOCIATION, SUCCESSOR TO PNC EQUIPMENT FINANCE, LLC,

TENTATIVE RULING:

The unopposed application for a writ of possession for a 2023 Bobcat E32 Excavator Mini-Compact, Serial #B57811722 is approved. The court will execute the Order for Writ of Possession lodged with the Court on April 7, 2026.

14. 9:00 AM CASE NUMBER: C26-01203

CASE NAME: DANA FINEGOLD VS. JAMES FINEGOLD

SHOW CAUSE WHY A PRELIMINARY INJUNCTION SHOULD NOT BE ISSUED - SET BY DEPT PER EX PARTE ORDER FILED 4/29/26

FILED BY:

TENTATIVE RULING:

Before the Court is an order to show cause why a preliminary injunction should not issue foreclosing Defendant from engaging in, or attempting to engage in, fraudulent, unlawful, harmful and/or injurious conduct to Plaintiff, with respect to the operation of Plaintiff's and Defendant's company, AAAA RV & Boat Storage, LLC ("AAAA RV & Boat Storage" or the "Company").

For the following reasons, the motion is **denied** and the TRO issued on April 29, 2026 is **vacated**.

Factual and Procedural Background

On April 4, 2026 Plaintiff Dana Finegold, as an individual and derivatively on behalf of AAAA RV & Boat Storage, LLC filed a complaint against Defendant James Finegold and Nominal Defendants AAAA RV & Boat Storage LLC and JDF Holdings. The complaint for damages alleges causes of action for (1) breach